		Plaintiff's counsel must also provide a revised Proposed Order with the following corrections and revisions: 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 2. Attorney information must be deleted from the caption page. 3. As noted above, the proposed order filed at ROA #80 is missing all exhibits referenced in ¶ 1. The revised proposed order must attach all exhibits referenced. 4. In ¶ 14, the name of the administrator should be set forth in full—i.e., Simpluris, Inc. 5. In addition to stating the date on which the administrator's final report shall be filed, counsel should propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date. Plaintiff's counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers, as well as an explanation of how the pending issues were resolved, with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved or does not clearly state a specific concern has been resolved, is insufficient and will result in a continuance. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days.
110	**Volrich vs. Affinity Group LLC** **2024-01405245**	**Motion For Approval of PAGA Settlement** The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Daniel Volrich's Motion for Approval of PAGA Settlement is **GRANTED**. This is a PAGA-only action. On 6/10/2024, Plaintiff Daniel Volrich, on behalf of himself and all aggrieved employees pursuant to Labor Code § 2698, *et seq.*, filed a PAGA representative action complaint against Defendant Affinity Group LLC d/b/a Affinity Recovery. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 7/5/2024, which alleges a single cause of action for PAGA penalties for violations of Labor Code sections 201, 202, 226(a), 226.7, 2247.3, 246, 510, 512, 1174, 1174.5, and 1194, as well as 226.3 and 558. (ROA #11.) On 9/16/2025, Plaintiff filed the instant motion for approval of the PAGA settlement, and submitted for the Court's review the Private Attorney General Act

		(Labor Code § 2698 *et seq.*) Settlement Agreement and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties' proposed settlement of Plaintiff's representative PAGA claims for the non-reversionary gross settlement amount (GSA) of $150,000. At the first hearing on the Motion on 1/29/2026, the Court concluded that an attorneys' fee award totaling $45,500 or 30% of the GSA, constituting a 0.85 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved. (ROA #55.) The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage, and deducted from the requested amount $21.26 for claimed postage. (*Id.*) The Court continued the Motion and asked Plaintiff's Counsel to address various issues. (*Id.*) Counsel has submitted supplemental materials, including an Amended Private Attorneys General Act (Labor Code § 2698 *et seq.*) Settlement Agreement ("Amended Settlement Agreement") and an amended notice/cover letter to aggrieved employees that will accompany the payment to them. Based on a review of all submissions made in support of the motion, including counsel's lodgment of Plaintiff's Individual Settlement Agreement for the Court's in camera review, the Court finds the settlement is fair and reasonable. As a result, the Court grants the Motion and approves the following disbursements and awards from the Gross Settlement Amount: • Attorneys' fees totaling $45,500.00 awarded to Plaintiff's Counsel, Gaines Law Corporation; • Litigation costs totaling $6,675.11 awarded to Plaintiff's Counsel, Gaines Law Corporation; and • Settlement administration costs of $2,900.00 awarded to ILYM Group, Inc. PAGA penalties in the amount of $95,424.89 shall be allocated as follows: seventy-five percent (75%), or $71,568.67, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%), or $23,856.22, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement. **The Final Accounting hearing is set for May 6, 2027, at 2:00 p.m. in Department CX102**. Plaintiff's Counsel must submit the settlement administrator's final report regarding distribution of the settlement funds at least sixteen (16) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to Aggrieved Employees, the number of uncashed settlement checks, and the total amount of any unclaimed funds remitted to the State Controller's Office Unclaimed Property Fund. If the unclaimed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.

111	**Cruz vs. Level 23 Fab Inc.** **2022-01295952**	**Motion for Approval of PAGA Settlement** The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a $50,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement</u>: 1. The court will not approve a settlement that permits defendant to shorten the PAGA Period and that option should be removed. ¶ 8. Plaintiff must determine the final number of applicable pay periods prior to approval, i.e., whether the escalator provision has been triggered. Id. 2. The parties should provide the estimated high and low individual PAGA payments. 3. The parties should provide plaintiff's estimated individual PAGA payment. 4. The parties should submit a copy of plaintiff's individual settlement agreement. 5. The "Released Parties" provision is overbroad. ¶ 1.27. It includes unrelated, ambiguous and/or unidentified third parties that should be identified or removed including "members, agents, trustees, representatives, attorneys, insurers, co-employers, reinsurers, parent companies, predecessors, successors, assigns, subsidiaries, divisions, and affiliates." 6. Defendant should state in a declaration filed with the court whether it is aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 7. Plaintiff's counsel seeks reimbursement for litigation costs in the amount of $7,137.46, including $5,175 for mediation fees. ROA 75 ¶ 28. Counsel should submit an invoice supporting the claimed mediation fee. Additionally, to the extent the mediation included plaintiff's individual claims and settlement, as indicated by counsel (ROA 75 ¶ 8), why should aggrieved employees and the state, as opposed to plaintiff individually, bear that full cost? Costs for postage ($31.38, $2.07) should be removed as the court does not reimburse such costs. 8. Plaintiff's counsel seeks attorneys' fees totaling 40% of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice</u>: 9. The notice (ROA 75 Ex. 2A) should be revised consistent with the above. 10. Include the gross settlement amount, the amounts of attorneys' fees and attorneys' costs, the settlement administration fees, the net settlement amount and the amounts to be paid to the LWDA and the